

**NATIONAL CONSUMER DISPUTES REDRESSAL COMMISSION
NEW DELHI**

CONSUMER CASE NO. 1454 OF 2016

1. KRISHAN KUMJAR DWIVEDI

HOUSE NO-59, SEC-31, GURGAON, HARYANA

.....Complainant(s)

Versus

1. M/S. VCORP DEVELOPERS. PVT. LTD.

ORCHID CENTER GROUND FLOOR, GOLF COURSE
ROAD, SEC-53, GURGAON-122002

.....Opp.Party(s)

BEFORE:

HON'BLE MR. PREM NARAIN, PRESIDING MEMBER

For the Complainant : **Mr.Mukesh Sharma, Advocate**

For the Opp.Party :

Dated : 16 May 2017

ORDER

1. This complaint has been filed by Krishan Kumar Dwivedi complainant, against the opposite party.
2. The case of the complainant is that the opposite party issued advertisement for an IT/cyber park in the name of Aquarius Cyber Park, Sector 74, Gurgaon, Haryana (hereinafter referred as 'said project'). The complainant paid in advance for the office space in the said commercial building. On 22.03.2013, further in order to prove its bonafide and lure the complainant, the opposite party company further entered into Developer- Anchor Option Agreement-Assured Return Plans qua the aforesaid units/office spaces along with addendum dated 22.03.2013 (hereinafter referred to as "the Assured Return Agreement"). The complainant put in respective amounts in the said project and booked three Anchor Unit/Office Spaces in the said project. Further, vide the said Assured Return Agreement, the opposite party also assured a fixed return amount to the complainant till the time the possession is not granted to him. Pertinently, the opposite party company vide the said space Agreement assured the complainant to handover the possession of the said unit/spaces booked in the project within 5 years from the date of the signing of the said Space Agreement and also assured that the opposite party company shall pay the assured return amount as stated in the respective Assured Return Agreement for the period of sixty months from the date of the signing of the Assured Return or till the date of possession., The complainant sent various reminders to the opposite party for informing exact status of the project, however, no reply was given by the opposite party.
3. Hence the complaint.
4. Heard the learned counsel for the complainant at the admission stage.
5. Learned counsel for the complainant stated that three units/spaces were booked and total consideration of Rs.61,25,000/- was paid as per the following details:-

S. No.	Unit/Space No. And Type of Unit	Area (sq. ft.)	Price per sq. ft.	Total Amount Paid (Rs)
1.	IV3/1045-T/ST Flat/Office Space (Technology Unit)	1500	2750	41,25,000/-
2.	IV3/1046-R/ST Flat/Office Space (Commercial Retail)	250	4000	10,00,000/-
3	IV3/1047-R/ST Flat/Office Space (Commercial Retail)	250	4000	10,00,000/-
	Total Consideration Paid			61,25,000/-

6. Learned counsel argued that neither the possession was given nor the assured return has been paid as promised under the “the Assured Return Agreement”. It was further argued that the complainant purchased the aforementioned commercial properties for expanding his activities for earning his livelihood by means of self-employment. It was stated that the complainant was and still is earning his livelihood through his sole proprietorship concern. With an intention to expand his business and earn his livelihood the complainant registered a company in the name of SK Info Developer Pvt. Ltd., whose registered office and the corporate office both were located at the same place, hence, with intent to separate these offices, these spaces/units were purchased. Learned counsel pointed out that though these spaces are commercial properties, they have been purchased for livelihood of the complainant and hence complainant is a consumer under the explanation clause attached to Section 2(1)(d) of the Consumer Protection Act 1986. Coming to the pecuniary jurisdiction aspect of his complaint, learned counsel mentioned that Rs.61,25,000/- is the payment that was made to the OP and Rs.39,47,500/- is the due amount of assured return that the complainant is entitled to receive from the OP.. Thus the total amount exceeds rupees one crore. Hence, the National Commission will have the jurisdiction to adjudicate upon this complaint.

7. I have carefully gone through the record and have given thoughtful consideration to the arguments advanced by learned counsel for the complainant. The complainant has made the following averments in the complaint:-

“5. That imperatively, at the time the Complainant purchased the aforementioned commercial properties, the Complainant was and still is earning his livelihood through

his sole proprietorship. That, pertinently with an intention to expand his business and earn his livelihood the complainant registered a company in the name of SK Info Developer Pvt. Ltd.”

8. The complainant has booked three spaces. Had it been a case of earning livelihood, He would have opted for only one space because he could have worked personally only at one space. Obviously, the complainant cannot work at 3 spaces simultaneously. Moreover, from the averments made in the complaint as mentioned above, it is clear that the complainant is already running a company by the name of SK Info Developer Pvt. Ltd.

9. As the complainant had also entered into “assured return agreement” with opposite party and he got assured income for a few months which was stopped by the opposite party later on. it only reveals that these properties were being purchased as an investment. Buying properties as investment cannot be treated as buying for livelihood by means of self-employment. Even, though the complainant has stated in the complaint that he has purchased the spaces for livelihood, but he has not mentioned whether he was earning the livelihood through self-employment or otherwise. Clearly complainant is running the company and these spaces were bought for expansion of the business activities of the company. Clearly this is not covered under self-employment.

10. Learned counsel for the complainant cited the judgment in **Richa and Co. Vs. DLF Universal Ltd. & Ors. CO No.236 of 2012, decided on 01.10.2012 (NC)** and pointed out towards para 17 of this judgment wherein, this Commission has quoted the judgment of **Laxmi Engineering Works Vs. P.S.G. Industrial Institute, II (1995) CPJ 1 (SC)**. In the case cited by learned counsel for the complainant, this Commission has only mentioned the principles laid down by the Hon’ble Supreme Court in the matter of **Laxmi Engineering Works** (supra) wherein the Hon’ble Apex Court has clearly observed that the commercial purpose is to be decided from the facts in each case. As examined above, the complainant had definitely purchased three units/spaces for investment and definitely not for earning livelihood by means of self-employment.

11. Based on the above discussion, I find that the complainant’s case is not covered under the explanation under Section 2(1)(d) of the Consumer Protection Act 1986, and hence the complainant herein is not a consumer. Accordingly, the complaint is dismissed in *limine* being not maintainable under the Consumer Protection Act 1986. However, the complainant may seek appropriate remedy in the Civil Court for which liberty is granted..

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PREM NARAIN
PRESIDING MEMBER